

and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." (Civ. Proc. Code § 437c(c).)

Defendants move for summary judgment/adjudication as to causes of action ("COA") No. 1 – Negligence and No. 2 – Negligent Hiring, Supervision, Training, And Retention. Defendants also request summary adjudication as to the issue of respondeat superior

1) COA No. 1 – Negligence

"The elements of a cause of action for negligence are well established. They are '(a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.' " (*Ladd v. Cty. of San Mateo* (1996) 12 Cal. 4th 913, 917.) "[T]he existence of a duty is a question of law for the court." (*Kentucky Fried Chicken of Cal., Inc. v. Superior Court* (1997) 14 Cal. 4th 814, 819.)

"As a general principle, a "defendant owes a duty of care to all persons who are foreseeably endangered by his conduct, with respect to all risks which make the conduct unreasonably dangerous." [Citations.] As we shall explain, however, when the avoidance of foreseeable harm requires a defendant to control the conduct of another person, or to warn of such conduct, the common law has traditionally imposed liability only if the defendant bears some special relationship to the dangerous person or to the potential victim." (*Tarasoff v. Regents of Univ. of California* (1976) 17 Cal. 3d 425, 434–35 ("Tarasoff").) "Although, as we have stated above, under the common law, as a general rule, one person owed no duty to control the conduct of another [Citations], nor to warn those endangered by such conduct (Rest.2d Torts, supra, § 314, com. c.; Prosser, Law of Torts (4th ed. 1971) § 56, p. 341), the courts have carved out an exception to this rule in cases in which the defendant stands in some special relationship to either the person whose conduct needs to be controlled or in a relationship to the foreseeable victim of that conduct (see Rest.2d Torts, supra, §§ 315–320). (*Tarasoff, supra*, 17 Cal. 3d at 435.)

"We begin by noting that in any analysis of foreseeability, the emphasis must be on the specific, rather than more general, facts of which a defendant was or should have been aware." (*Pamela W. v. Millsom* (1994), 25 Cal. App. 4th 950, 957) "Also relevant are the observations of another court: "No one really knows why people commit crime, hence no one really knows what is 'adequate' deterrence in any given situation. While bright lights [or in this case, an alarm] may deter some, they will not deter all. Some persons

cannot be deterred by anything short of impenetrable walls and armed guards.” (Id.)

“It is now well established that California law requires landowners to maintain land in their possession and control in a reasonably safe condition. (Civ. Code, § 1714; [Citation.]) In the case of a landlord, this general duty of maintenance, which is owed to tenants and patrons, has been held to include the duty to take reasonable steps to secure common areas against foreseeable criminal acts of third parties that are likely to occur in the absence of such precautionary measures.” (*Ann M. v. Pac. Plaza Shopping Ctr.* (1993) 6 Cal. 4th 666, 674 (“*Ann M.*”), disapproved of on other issues by *Reid v. Google, Inc.* (2010) 50 Cal. 4th 512, 235 P.3d 988 (2010), and disapproved of by *Schinkel v. Sullivan*, No. 116CV00818AWIJLTPC, 2016 WL 8731391 (E.D. Cal. Dec. 30, 2016).) “[A] high degree of foreseeability is required in order to find that the scope of a landlord's duty of care includes the hiring of security guards. We further conclude that the requisite degree of foreseeability rarely, if ever, can be proven in the absence of prior similar incidents of violent crime on the landowner's premises. To hold otherwise would be to impose an unfair burden upon landlords and, in effect, would force landlords to become the insurers of public safety, contrary to well-established policy in this state.” (*Ann M.*, *supra*, 6 Cal. 4th at 679.)

Defendants produced deposition testimony of Plaintiff wherein Plaintiff stated he sublet a room from Thomas who was the individual on the lease for the Property. (Motion, Ex. B at 17:5-22.) Plaintiff testified Richard lived with his mother in the valley, but that sometimes Thomas let Richard sleep on the couch in the living room when he came down for work or something. (Motion, Ex. B at 23:14-19.) Plaintiff never had any prior arguments with Richard nor had Richard threatened Plaintiff with bodily injury, Plaintiff was not aware of Richard being arrested or having any criminal background prior to the incident, Plaintiff was not aware of any prior incidents of violence or drug problems by Richard. (Motion, Ex. B at 24:16-25:3, 26:1-17, 26:24-18, 33:20-34, 40:13-41:2, 58:9-12, 67:17-23.) Plaintiff never felt threatened by Richard prior to the incident. (Motion, Ex. B at 42:20-22.) Plaintiff did not know if the police had ever presented to the apartment complex due to Richard prior to the incident. (Motion, Ex. B at 31:22-32:9, 39:17-20, 40:7-12.) At the time of the incident, Plaintiff had been in the garage checking the oil in a friend's vehicle. (Motion, Ex. B at 33:20-34:25.) Plaintiff brought a chair from the garage into the house when Richard stabbed Plaintiff. (Motion, Ex. B at 35:23-36:3.) Richard did not say anything but fled after Richard stabbed Plaintiff. (Motion, Ex. B at 26:4-17, 30:8-12, 35:23-36:3, 37:10-15.) Plaintiff did not know why Richard stabbed Plaintiff and Plaintiff never asked why. (Motion, Ex. B at 50:22-51:1.) Plaintiff had never seen anyone at the Property affiliated with JDPM or PEC, but knew Thomas was a property manager as Thomas had shown Plaintiff a check Thomas received. (Motion, Ex. B at 21:12-25.)

Defendants produced the declaration of Property Supervisor Orlando Cintron (“Cintron”), who works for JDPM. (Cintron Decl. ¶ 2.)

Cintron indicated a background checks and drug tests on Thomas and his then wife were passed without any problems. (Cintron Decl. ¶ 4.) Cintron stated he had never met Richard and neither of the Defendants were aware of any criminal record or violent history regarding Richard prior to the date of the incident. (Cintron Decl. ¶ 6.) Cintron believed Richard was an occasional guest of Thomas. (Cintron Decl. ¶ 6.) Thomas never informed Defendants of any complaints, objections, grievances, or warnings regarding Richard before the incident, nor did either of the Defendants have such knowledge. (Cintron Decl. ¶¶ 7-8.) Cintron never received or heard of any complaints, objections, grievances, or warnings about Thomas during Thomas's tenure as an Apartment Resident Manager. (Cintron Decl. ¶ 9.)

Defendants produced a copy of the Apartment Manager Duties, none of which indicate Thomas was responsible for security issues in the complex or that Thomas was prohibited from having family members stay with him. (Motion, Ex. C.) The drug test for Thomas came back negative, but there is no information on the outcome of the background check.

Defendants have produced evidence that prior to the subject incident, Defendants were unaware of any complaints against Richard, any violent tendencies by Richard, any drug abuse by Richard, or that Richard was a threat. The subject incident also occurred inside the home Thomas shared with Plaintiff and where Richard was visiting, not in the common areas of the apartment complex.

Defendants have produced sufficient evidence supporting it not being foreseeable for Richard to attack Plaintiff in Plaintiff's home. Richard did not work for Defendants and Defendants had no ability to control Richard as there was no special relationship between Richard and Defendants. Plaintiff himself testified he never felt threatened by Richard before the incident and was not aware of any prior criminal actions Richard was involved in.

Defendants have met their initial burden on this COA, the burden transfers to Plaintiff to show triable issues of fact remain.

Plaintiff argues there was a foreseeability of harm as Richard had previously been arrested by the Anaheim Police Department for a DUI in October 2022. (Lingenfelter Decl. ¶ 3, Ex. 1.) A prior DUI does not support foreseeability of a stabbing as the two crimes are completely different, with only the latter being a violent crime. Plaintiff did not produce evidence showing Defendants were aware of Richard's prior arrest record or that Defendants had the duty to seek out Richard's arrest record. There is nothing in the deposition testimony of Officer David Hill that suggests Defendants should have been on notice regarding Richard. Although Cintron testified that if Thomas notified Cintron of Richard's drug problem, Richard would be prohibited from the premises because he might be dangerous (Lingenfelter Decl., Ex. 5 at 30:15-31:11), Plaintiff has not shown Defendants were aware of any drug problem.

Regarding Richard's violent propensities and Defendants' knowledge thereof preceding the subject incident, Plaintiff produced declarations and recent deposition testimony of Plaintiff's friend Caroline Pouzbouris ("Pouzbouris"). (ROA 170, 185, 196.)

Pouzbouris testifies in her declaration (ROA 170) that she was at the complex when Richard suddenly and without substantial provocation grabbed a hammer and attempted to attack her while cursing, yelling, and calling her names. (¶5.) She stated that Thomas stopped the attack and told her that Richard "needs help." (¶¶ 5-6.) She heard Thomas yelling at Richard "that this was the second such time where it appeared that Richard was acting irrational, and in a dangerous and violent manner." (¶8.) Thomas said that he would notify the moving Defendants. (¶7.)

Pouzbouris' statement that she did not follow up to see if the Moving Defendants were notified of the incident does not mean that they did not have constructive notice of the incident. It is undisputed that Thomas was the resident property manager, hired to look after certain aspects of the property. True, Thomas was not hired to perform security duties; but as an agent of the Moving Defendants, any knowledge obtained by him of a dangerous condition on the property would be imputed to them. See CCP § 2332 ("As against a principal, both principal and agent are deemed to have notice of whatever either has notice of, and ought, in good faith and the exercise of ordinary care and diligence, to communicate to the other.") This deemed notice is referred to as "constructive notice." *Jefferson v. Hewitt*, (1894) 103 Cal.624, 629 ("notice to an agent is constructive notice to the principal.")

In apparent recognition of the foregoing, Moving Defendants in their initial reply assert: "Plaintiff's theory as alleged in the opposition: that any knowledge allegedly possessed by Thomas Beck of Richard Beck's violent nature or that any criminal history of his is automatically imputed to defendants is not what was alleged in the complaint." (Reply, p.4, lines 6-12.)

But the second amended complaint alleged that JD Property Management was "individually and/or through agents/employees, aware of Defendant RICHARD THOMAS BECK's propensity for violence," (2AC, ¶4), and that "Defendants JD PROPERTY MANAGEMENT, INC. and PIONEER EQUITIES CORPORATION had . . . constructive notice of Defendant RICHARD THOMAS BECK's dangerous propensities and need to keep him off of the premises" (2AC, ¶13) (Emphasis added.). These allegations are sufficient to raise the issue of imputed/constructive knowledge.

Of course, Plaintiff later added Pouzbouris' deposition testimony that she left a detailed message indicating she had spoken with Thomas who has stated he had reported the incident between Thomas and Richard and that Richard was no longer allowed to go to the building. (ROA 196, Ex. 8 at 21:1-21:15.) Pouzbouris's statement that she notified Cintron of the incident in general is sufficient to have put Defendants on actual notice of a issue regarding Richard and for the need for further investigation.

While Cintron states he never received a notification of the incident involving Pouzbouris, Pouzbouris's deposition testimony puts a triable issue of material fact as to whether Defendants did receive information related to Richard and were put on notice of potential danger of Richard being on the Property.

Defendants next argue they are not the proximate or legal cause of Plaintiff's injuries.

"One of the concepts included in the term proximate cause is cause in fact, also referred to as actual cause. Indeed, for purposes of BAJI No. 3.75, "so far as a jury is concerned 'proximate cause' only relates to causation in fact." (Com. to BAJI No. 3.75, italics added.) "There are two widely recognized tests for establishing cause in fact. The 'but for' or 'sine qua non' rule, unfortunately labeled 'proximate cause' in BAJI No. 3.75, asks whether the injury would not have occurred but for the defendant's conduct. The other test, labeled 'legal cause' in BAJI No. 3.76, asks whether the defendant's conduct was a substantial factor in bringing about the injury." (Mitchell v. Gonzales (1991) 54 Cal. 3d 1041, 1049.)

"Criminal conduct which causes injury will ordinarily be deemed the proximate cause of an injury, superseding any prior negligence which might otherwise be deemed a contributing cause. (See 6 Witkin, Summary of Cal. Law (9th ed. 1988) Torts, § 9926 Witkin, Summary of Cal. Law (9th ed. 1988) Torts, § 992, pp. 382, 383.) However, "[i]f the likelihood that a third person may act in a particular manner is the hazard or one of the hazards which makes the actor negligent, such an act whether innocent, negligent, intentionally tortious or criminal does not prevent the actor from being liable for harm caused thereby." (Koepke v. Loo (1993) 18 Cal. App. 4th 1444, 1449.)

As set forth above, there is a triable issue of fact whether Moving Defendants had actual or constructive notice of Richard's violent tendencies.

Plaintiff has met the transferred burden on this Motion of showing triable issues of material fact exist as to Defendants being on notice regarding Richard.

The Motion is **DENIED** as to this COA.

2) COA No. 2 – Negligent Hiring, Supervision, Training, And Retention

"An employer may be liable to a third person for the employer's negligence in hiring or retaining an employee who is incompetent or unfit. [Citation.]" [Citation.] Negligence liability will be imposed upon the employer if it "knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes. [Citation.] As such, "California follows the rule set forth in the Restatement Second of Agency section 213, which provides in pertinent part: 'A person conducting an activity through

servants or other agents is subject to liability for harm resulting from his conduct if he is negligent or reckless: ... [¶] (b) in the employment of improper persons or instrumentalities in work involving risk supervision and/or retention of an employee is one of direct liability for negligence, not vicarious liability.” (*Delfino v. Agilent Techs., Inc.* (2006) 145 Cal. App. 4th 790, 815 (“*Delfino*”).)

“[O]ur Supreme Court enunciated seven factors relevant to determining the existence of duty: “[1] the foreseeability of harm to the plaintiff, [2] the degree of certainty that the plaintiff suffered injury, [3] the closeness of the connection between the defendant's conduct and the injury suffered, [4] the moral blame attached to the defendant's conduct, [5] the policy of preventing future harm, [6] the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and [7] the availability, cost, and prevalence of insurance for the risk involved.” (*Delfino, surpa*, 145 Cal. App. 4th at 815.)

In the present case, Defendants argue there is no evidence of foreseeability of harm to Plaintiff (a sublessee) by Richard (a non-tenant) as they claim to not have received any information regarding 1) Richard living on the Property, 2) Richard being violent towards anyone, or 3) of Richard’s arrest record. Plaintiff also testified he never had any issues with Richard or felt threatened by Richard prior to the incident, was unaware of any prior arrest or criminal record of Richard, and Plaintiff did not know why Richard stabbed Plaintiff. (Motion, Ex. B at 24:16-25:3, 26:1-17, 26:24-18, 33:20-34, 40:13-41:2, 42:20-2258:9-12, 67:17-23.) In opposition to Defendants’ arguments regarding prior knowledge, Plaintiff has produced the evidence constructive and actual knowledge noted above. There is an issue of material fact as to Defendants’ prior knowledge and potential foreseeability that Richard might cause additional violence on the property.

It is certain Plaintiff suffered harm by Richard.

There is a connection between Defendants’ conduct retaining Thomas and Plaintiff being stabbed. Thomas was Defendants’ employee and permitted Richard to sleep on his couch despite knowing Richard’s alleged drug history. Cintron testified that had Defendants known of Richard’s drug problem, they would not have allowed Richard on the Property. (Lingenfelter Decl., Ex. 5 at 30:15-31:11.) Defendants would have asked any tenant with a drug issue that was dangerous to leave. (*Id.*) Defendants do not allow people with a history of drugs or felonies to stay on the Property. (Lingenfelter Decl., Ex. 5 at 12:8-25.) Thomas was also terminated in April 2022 due to illegally subletting a room without Defendants’ knowledge. (Lingenfelter Decl., Ex. 5 at 17:2-11.) Thomas was responsible for being Defendants’ “eyes and ears” on the Property. (Lingenfelter Decl., Ex. 5 at 29:4-8.) The fact that Thomas allegedly knew of Richard’s violent propensities and drug habit, yet did not prohibit Richard from going onto the property nor notify Defendants of issues related to Richard suggests Thomas failed to perform the duties Thomas was hired to do. Those duties

being: 1) "Communication and coordination with Property Manager," and 2) "Exchange all information property manager." (Motion, Ex. C.) Richard also violated Defendants' standards of conduct and discipline including: 1) dishonesty by failing to notify Defendants of prior altercations with Richard on the Property and apparently subleasing a room for which he was ultimately terminated; and 2) conflict of interest between the safety of residents and letting Richard onto the Property. (Motion, Ex. C.) Thomas was also, "expected to assist management in injury and illness prevention activities. Unsafe conditions must be reported." (Motion, Ex. C.) All of which Thomas apparently violated.

Defendants provided no evidence of oversight of Thomas and apparently did not know Thomas had subleased the room to Plaintiff for almost 26-months prior to the stabbing, nor were Defendants aware of the stabbing until this lawsuit was served on Defendants. (Motion, Ex. 38:8-19; Lingenfelter Decl., Ex. 5 at 19:11 -21:18 .) Had Thomas prevented Richard from being on the Property, Plaintiff would likely not have been injured. These issues are related to negligent retention of an employee.

The level of moral blame is uncertain, but present. Defendants appeared to be largely "hands off" when it came to the complex and instead relying on Thomas's information, which Thomas minimized or did not provide to Defendants in violation of the requirements of his employment. While there is some leeway to leave an employee to perform his job duties, oversight to ensure the employee is performing his duties as required is necessary.

It is unclear what Defendants might have, or should have, done differently based on the lack of information they alleged had regarding Richard. However, again, Pouzbours testified she notified Defendants of issues related to Richard. If Defendants did have that information, they could have possibly terminated or evicted Thomas for violating his employment requirements to ensure Richard did not return to the Property. No evidence of any policy of preventing future harm was provided.

The burden on Defendants is unclear. It could be as minimal as hiring better employee, doing more extensive background checks on employee family members, or simply supervising employees better. The burden could also be more excessive such as hiring full time security to patrol a 10 apartment complex. No information regarding burdens was provided.

Although Defendants may have met their initial burden on the "hiring" aspect of this COA, Plaintiff has met any transferred burden regarding duty related to "supervision" or "retention" aspects of this COA. This is direct liability versus vicarious liability on the part of Defendants. (*Delfino, supra*, 145 Cal. App. 4th at 815.)

The Motion is **DENIED** as to this COA.

3) Issue No. 3 – Respondeat Superior

Defendants ask for summary adjudication as to the issue of respondeat superior.

"The doctrine of respondeat superior holds an employer liable for torts of its employees committed within the scope of their employment. [Citations.] A plaintiff suing an employer under the doctrine must prove the person who committed the tort was acting within the scope of his or her employment." (*Marez v. Lyft, Inc.* (2020) 48 Cal. App. 5th 569, 577.) There are, "two tests California courts have used "for scope of employment under the respondeat superior doctrine." [Citation.] "Under one test, the employer is liable if the activities that caused the employee to become an instrument of danger to others were undertaken with the employer's permission and were of some benefit to the employer, or in the absence of proof of benefit, the activities constituted a customary incident of employment. [Citation.] The second test, which was articulated in *Halliburton*, provides "an employee's conduct is within the scope of his or her employment if (1) the act performed was either required or incident to his duties or (2) the employee's misconduct could be reasonably foreseen by the employer in any event. [Citation.] In this test, foreseeability means that in the context of the particular enterprise, an employee's conduct is not so unusual or startling that it would seem unfair to include the loss resulting from it among the costs of the employer's business." (*Id.*) "[C]ourts have exempted "purely personal" conduct from the scope of employment. "Where an employee's activity does not come within the scope of employment, it is not part of the special employer-employee relationship. If an employee's act is purely personal, it is not 'typical of or broadly incidental to the employer's enterprise.' [Citation.] If the main purpose of the injury-producing activity 'was the pursuit of the employee's personal ends, the employer is not liable.' " [Citation.] Courts have held "even if a prong of the scope of employment test described in [*Halliburton*] had been established, an exception to the test existed for purely personal business." (*Id.*, at 587.) No court has commented on how the "purely personal activity" rule interacts with the first test.

Defendants produced Thomas's job description and duties, while none of which indicate Thomas was specifically responsible for security in the complex, Thomas was responsible for 1) "Communication and coordination with Property Manager," and 2) "Exchange all information property manager." (Motion, Ex. C.) Thomas apparently failed to perform those duties and notify Defendants of issues with Richard being on the Property. Thomas also violated Defendants' standards of conduct and discipline including: 1) dishonesty by failing to notify Defendants of prior altercations with Richard on the Property and apparently subleasing a room for which he was ultimately terminated; and 2) conflict of interest between the safety of residents and letting Richard onto the Property. (Motion, Ex. C.)

Thomas was not the instrument of danger to Plaintiff, Richard was. There is nothing to suggest Thomas's action of permitting Richard onto the Property was undertaken with the permission of Defendants or for the benefit of Defendants. The first respondeat superior test

		does not appear to support Defendants' liability. Permitting Richard onto the Property was also "purely personal" and independent from the scope of Thomas's employment, even though Thomas had the duty to notify Defendants of Richard's prior violence. The second respondeat superior test does not appear to apply. It appears Defendants have met their initial burden on this issue. Plaintiff made no specific arguments related to the respondeat superior issue in the opposition and has not met the transferred burden. The Motion is GRANTED as to the issue of respondeat superior liability. 4) Defendants' Objections <u>Objections to Deebes Decl.:</u> Overrule. <u>Objections to Pouzbouris Decl.:</u> Sustain as to No. 7 (hearsay – last sentence). Overrule as to the remainder. <u>Objections to Lingenfelter Decl.:</u> Overrule as to Nos. 1 – 4 (Police custodian of records declaration was provided authenticating the exhibits – Ex. 4 and records prepared by public employee in course and scope of their duties.) Defendants to give notice.
9	Kim v. St. Joseph Hospital of Orange	Cont. to 4/28.
10	Dadras v. Canyon Estates Community Assn.	O/C
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